

Definition of a Patient

Standard:

To establish guidelines for who meets the criteria to be considered a patient in the ATCEMS System.

Purpose:

The definition of a patient is any individual person or third party who calls about an individual person that:

- Has a complaint suggestive of potential illness or injury
- Requests evaluation for potential illness or injury
- Has obvious evidence of illness or injury
- Has experienced an acute event that could reasonably lead to illness or injury
- Is in a circumstance or situation that could reasonably lead to illness or injury

All individuals meeting any of the above criteria are considered "patients" in the ATCEMS System. These criteria are intended to be considered in the broadest sense. The determination of an individual's status as a patient requires the input of both the individual and the Provider as well as an assessment of the circumstances that led to the 9-1-1 call.

Clarification: A person of any age involved in an incident where there is minimal to no evidence of injury potential (i.e. motor vehicle collision with minor damage) **and**, the person has no complaints of injury or pain **and**, does not request a medical assessment **and/or**, did not request an EMS response; may not be considered a patient as indicated in the definitions above. Thus, not subject to requiring any further evaluation, assessment or PCR.

Application:

- 1) Anyone that fits the definition of a patient must be properly evaluated by a System credentialed provider and appropriate treatment and transportation offered.
 - a) If a patient wishes to refuse offered treatment and/or transport Against Medical Advice (AMA) refer to Refusal of Treatment or Transportation Standard and the Determination of Capacity Standard.
- 2) Any adult that does not fit the definition of a patient as defined above does not require an evaluation or, completion of a Patient Care Record and, may be designated as "no patient"(s). Minors with an appropriate consentor on scene (defined in Clinical Standard on Refusal of Treatment and/or Transport) or, who have the ability to consent as provided below may be designated as "no patient (s)". Minors, as defined below and **without** an appropriate "consentor on scene"; must have refusal documentation completed on a PCR/ePCR and, may not be designated as "no patient (s)." If there is any doubt; an individual should be deemed a patient and an appropriate evaluation should be provided and documented in the PCR/ePCR. If an individual meets the definition of a patient the following apply:
 - a) The definition of an adult is a person who is 18 years of age or older
 - i) Adults have the right to consent to or refuse medical treatment
 - b) The definition of a minor is:
 - i) A person under the age of 18 who is not and has never been married or who has not had the disabilities of minority (emancipation) removed for general purposes by a court
(1) Generally, minors can neither consent to, nor refuse, medical treatment. Some minors however, are considered to be emancipated and have the rights of consent/refusal afforded an adult
 - ii) A minor is considered emancipated if he or she has obtained a court order of emancipation from a Texas court. Minors may petition the court for emancipation if he is:

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- (1) (i) *A resident of Texas;* (ii) *17 years of age or at least 16 years of age and living separate from his parents, managing conservator or guardian;* (iii) *Is self-supporting and managing his own financial affairs*
- c) In certain situations, a minor may consent to medical treatment without involvement of a parent or legal guardian. A minor may consent to treatment if the minor:
- i) Is on active duty with the US armed services;
 - ii) Is 16 years or older residing separately from his parents or guardian and is managing his own financial affairs (regardless of the source of income);
 - iii) Consents to diagnosis and treatment of any infectious/communicable disease with a reporting requirement;
 - iv) Is unmarried and pregnant and consents to care related to the pregnancy, other than abortion;
 - v) Consents to examination and treatment relating to drug or alcohol dependency;
 - vi) Is unmarried and has custody of their biological child, they may consent to treatment for the child
- d) Pediatric guideline on the definition of a patient is:**
- i) For the purpose of determining transport destination, any patient younger than 18 years of age unless expressly stated in another guideline, standard or procedure. (e.g. Trauma Transport Guidelines where it is defined as age <15 years)
 - ii) For the purpose of selecting appropriate treatment guideline, any patient < 37 kg or who can be measured using a PEDIA Tape.